

Standards and Procedures for Medical Device Classification and Designation
of Classes (In Relation to Article 2)

1. Standards for the Classification of Medical Devices

A. The Minister of Food and Drug Safety shall classify medical devices into any of the following four classes through deliberation by the Medical Device Committee according to the purpose of use and the degree of potential risk to human body. In such case, if a medical device falls under two or more of the following classes, it shall be classified into the class of the highest risk:

- 1) Class I: Medical devices with little potential risk;
- 2) Class II: Medical devices with low potential risk;
- 3) Class III: Medical devices with moderate potential risk;
- 4) Class IV: Medical devices with high risk.

B. The standard for deciding the degree of potential risk of Item A are as follows:

- 1) Duration of contact with human body;
- 2) Degree of invasiveness;
- 3) Whether a device delivers medicine or energy to the patient;
- 4) Whether a device has biological impact on the patient.

C. Deleted. <May 1, 2020>

D. Deleted. <May 1, 2020>

E. Detailed standards for the purpose and use and potential risk under Items A and B shall be determined and publicly notified by the Minister of Food and Drug Safety.

2. Procedures for Designation of Class

The Minister of Food and Drug Safety shall classify medical devices into Section, Division, or Group according to the classification of the following items. In such case, items classified as Section and Division shall be publicly notified, and items classified as Group shall be publicly notified by assigning classification to each item:

- A. Section: Classification of medical devices into each instrument/machine, device, or material;
- B. Division: Classification of each Section into product groups with similar raw material, manufacturing process, and quality control system;
- C. Group: Classification of each Division into each item where functions are demonstrated independently.

3. Application for Class Re-Designation and Designation Procedures

A. The Minister of Food and Drug Safety may re-designate the class of each item through deliberation by the Medical Device Committee when there is an application for re-designation from the party concerned, etc., or when it is deemed there is a need for such re-designation.

B. In cases of re-designation, the degree of potential risk and validity of such re-designation under the following standards shall be examined:

- 1) Whether the description of each item and purpose, use, principle,

feature, function, etc. of the relevant medical device correspond to similar items;

2) Whether safety and performance of each item are fully secured compared to the items already classified to be designated, and managed.

C. A person who intends to apply for class re-designation shall submit an application in the Attached Form 54 to the Minister of Food and Drug Safety, along with the following data:

1) Data on technical document, etc.;

2) Data on comparative analysis of technical characteristics including structure/operational principle, performance, purpose of use, methods of use, etc. with other devices that are similar to medical devices subject to class re-designation.

D. Upon receiving an application for class re-designation under the provisions of Item C, The Minister of Food and Drug Safety shall review and decide within 90 days and notify the applicant of the result, and notify the public thereof.